



CHAPTER xcix.

An Act to empower the Corporation of Wolverhampton to construct tramways and to make further provision in regard to their tramway electricity and market undertakings and the health local government and improvement of their borough and for other purposes. [22nd July 1904.] A.D. 1904.

WHEREAS the borough of Wolverhampton in the county of Stafford is a county borough under the government of the mayor aldermen and burgesses of the borough (hereinafter called "the Corporation"):

And whereas in pursuance of the Tramways Act 1870 the Corporation have acquired the tramways in their borough and in pursuance of the Wolverhampton Corporation Act 1899 they have constructed tramways in their borough and in the neighbourhood thereof and it is expedient to empower them to construct the additional tramways described in this Act and to confer further powers upon them in regard to their tramway undertaking:

And whereas in pursuance of powers conferred upon them by the Wolverhampton Improvement Act 1869 the Corporation have by agreement purchased certain lands and buildings for the improvement of Queen Square and Victoria Street in the borough and for that purpose have obtained the sanction of the Local Government Board to borrow sums amounting to sixty-three thousand seven hundred and fifty pounds whereof the sum of twenty-six thousand five hundred and seventy-eight pounds (being the cost of the lands required for such improvement) is under the Board's sanctions to be repaid within sixty years from the date of the borrowing thereof and sums amounting to eleven thousand four hundred pounds and twenty-five thousand seven hundred and seventy-two pounds (being the cost of certain surplus

A.D. 1904. — lands) are under the Board's sanctions to be repaid within five years and seven years respectively from the dates of the borrowing thereof:

And whereas it is expedient to extend the periods for the repayment of both the said sums of eleven thousand four hundred pounds and twenty-five thousand seven hundred and seventy-two pounds to the period of fifty years from the eighteenth day of February nineteen hundred and four:

And whereas the Corporation are or since their incorporation in the year eighteen hundred and forty-eight have claimed to be the owners of certain lands containing upwards of twenty acres situate at Coven Heath in the parish of Bushbury in the county of Stafford which were granted or devised by a former inhabitant of the township of Wolverhampton named Nechell for the continual repair of the pavements of the said township and the net income derived by the Corporation from such lands has for many years been paid into the improvement fund out of which the expenses of repairing the streets of the borough are defrayed and it is expedient to extend to such lands the powers and provisions of the Municipal Corporations Act 1882:

And whereas it is expedient to make further provision in regard to the streets and buildings in the borough and that the powers of the Corporation in relation to the health local government and improvement of the borough be enlarged as by this Act provided:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows:—

For the construction of the tramways authorised by this Act together with all necessary conductors and other apparatus works and conveniences for the purposes of the said tramways	£ 10,196
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For the reconstruction widening and improvement of the bridge carrying the Wolverhampton Road over the Wyrley and Essington Canal authorised by this Act and for the purchase of lands therefor	2,000
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And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years: A.D. 1904.

And whereas an absolute majority of the whole number of the council at a meeting held on the fourteenth day of December nineteen hundred and three after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *Express and Star* and the *Midland Evening News* local newspapers published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the bill for this Act should be charged on the borough fund and borough rate:

And whereas such resolution was published twice in the said newspapers and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the eighth day of February nineteen hundred and four being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the first schedule of the *Borough Funds Act 1903* have been observed:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Stafford and are in this Act respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

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PART I.

PRELIMINARY.

Short title. **1.** This Act may be cited as the *Wolverhampton Corporation Act 1904.*

Division of Act into parts. **2.** This Act is divided into parts as follows:—

Part I.—Preliminary.

Part II.—Tramways.

Part III.—Lands.

Part IV.—Electricity.

Part V.—Markets.

Part VI.—Streets and Buildings.

Part VII.—Infectious Diseases.

Part VIII.—Milk Supply (Tuberculosis).

Part IX.—Common Lodging-houses.

Part X.—Abolition of office of Vestry Clerk and Collection of Rates.

Part XI.—Finance.

Part XII.—Miscellaneous.

Incorporation of Acts. **3.** The following Acts and parts of Acts so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act namely:—

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

Section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 Provided that the words in section 19 of that Act “but nothing in this Act contained shall authorise any local authority to place or run carriages upon such tramway and to demand and take tolls and charges in respect of the use of such carriages” shall not apply to the Corporation.

Interpretation. **4.** The several words and expressions to which by the Acts wholly or partially incorporated with this Act or by the Public Health Acts meanings are assigned shall in this Act have the same respective meanings unless there be something in the

subject or context repugnant to or inconsistent with such construction And in this Act unless the subject or context otherwise requires— A.D. 1904.

- “The Corporation” means the mayor aldermen and burgesses of the borough of Wolverhampton;
- “The borough” means the borough of Wolverhampton;
- “The township” means the township of Wolverhampton;
- “The council” means the council of the borough;
- “The town clerk” “the medical officer” “the surveyor” and “the inspector of nuisances” mean respectively the town clerk the medical officer of health the surveyor and the inspector of nuisances of the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices;
- “The borough fund” “the borough rate” “the improvement fund” and “the improvement rate” mean respectively the borough fund the borough rate the improvement fund and the improvement rate of the borough;
- “The Canal Company” means the company of proprietors of the Birmingham Canal Navigations;
- “Dairy” means any farm farm-house cow-shed milk-store milk-shop or other place from which milk is supplied or in which milk is kept for purposes of sale;
- “Dairyman” means any cow-keeper purveyor of milk or occupier of a dairy;
- “Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the borough;
- “Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction;
- “The Act of 1869” and “the Act of 1899” mean respectively the Wolverhampton Improvement Act 1869 and the Wolverhampton Corporation Act 1899.

PART II.

TRAMWAYS.

5. Subject to the provisions of this Act the Corporation may make form lay down work use and maintain the tramways hereinafter described in the lines and according to the levels Power to make tramways.

A.D. 1904. — shown on the deposited plans and sections in all respects in accordance with those plans and sections with all proper rails plates junctions turn-tables turn-outs crossings passing places posts poles brackets wires waiting-rooms stables carriage-houses sheds buildings engines works and conveniences connected therewith. Provided that nothing in this Act shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways hereinbefore referred to and authorised by this section will be situate in the urban districts of Heath Town and Wednesfield in the county of Stafford and are—

Tramway No. 1.—(4 furlongs and 9·7 chains or thereabouts in length whereof 9 chains will be double line and 4 furlongs 0·7 chain will be single line) to be situate in the Wolverhampton Road in the urban districts of Heath Town and Wednesfield commencing by a junction with Tramway No. 8 authorised by the Act of 1899 at its termination and terminating at a point 27 yards measured in an easterly direction from the eastern corner of New Street :

Tramway No. 2.—(3 furlongs and 0·7 chain or thereabouts in length whereof 3 chains will be double line and 2 furlongs 7·7 chains will be single line) to be situate in the urban district of Wednesfield commencing by a junction with Tramway No. 1 at its termination passing along the Wolverhampton Road Rookery Street and High Street and terminating in March End Road at a point 20 yards measured in an easterly direction from the north-eastern corner of the Dog and Partridge public-house :

Provided that so much of Tramway No. 2 as will be situate on the bridge known as Rookery Bridge carrying the Wolverhampton Road over the Wyrley and Essington Canal of the canal company shall not be constructed until that bridge has been widened to the extent shown on the deposited plans.

Power to
widen canal
bridge.

6.—(1) Subject to the provisions of this Act the Corporation may in the lines and according to the levels shown on the deposited plans and sections reconstruct or widen and improve Rookery Bridge in the urban district of Wednesfield.

(2) The said bridge when reconstructed widened or improved in pursuance of this Act shall be and continue vested in and shall be maintained and repaired by the authority company or person in whom the existing bridge is vested and the widened road over the same shall be vested in and (subject to the provisions of the Tramways Act 1870) shall be repaired and maintained by the authority company or person in whom the existing road is vested or by whom it is repaired and maintained.

A.D. 1904.

7. If and when Tramway No. 2 shall be constructed upon Rookery Bridge the following provisions shall except so far as may be otherwise agreed between the canal company and the Corporation have effect namely :—

For protection of Birmingham Canal Company.

- (1) The Corporation shall give fourteen days' notice in writing to the canal company of their intention to commence any works which will affect or in anywise interfere with the structural works of the said bridge or the road over the same and shall at the same time send sufficient plans sections and specifications or other information to show the nature of such works :
- (2) If it shall be necessary to strengthen the said bridge owing to the weight of the carriages or other vehicles used on the tramways imposing upon such bridge a greater strain than is imposed by the traffic which now passes over the same such strengthening shall be effected at the expense of the Corporation :
- (3) Any widening or altering of the said bridge required for the purpose of constructing the said tramway thereupon and the works connected therewith and the construction and execution of any works of which notice shall be given under subsection (1) of this section shall be constructed made and completed at the cost of the Corporation in a good substantial and workmanlike manner and to the reasonable satisfaction of the engineer of the Canal Company and according to plans sections and specifications which shall have been approved of by him or settled by arbitration as hereinafter mentioned and during the construction of any of the said works he shall together with the requisite assistants and workmen have free access thereto and full permission to inspect the workmanship and materials thereof :

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- (4) The clear opening or span of the arch of the said bridge when so widened or altered as aforesaid shall be sufficient to clear or leave unobstructed at the point of crossing the whole navigable waterway of the canal and a space of not less than eight feet wide on one side thereof for a towing path and the springing of the arch or soffit of the girders for the whole length of crossing over the canal works and property of the canal company shall be not less than eight feet six inches above the present weir level of the canal :
- (5) It shall not be lawful for the Corporation or any person in execution of the powers of this Act to alter the course of any canal of the canal company or the towing path thereof or to obstruct the course or supply of the water in or to such canal or in any manner to impede the navigation thereof or the access thereto or to any wharf or wharves adjoining or near thereto or to injure any of the banks or other works of or belonging to such canal And it shall not be lawful for the Corporation (except as in this Act expressly provided) to take and interfere with such canal or any lands of the Canal Company or do any act whereby any of the canals towing paths bridges or other works of any kind of the Canal Company shall be taken used or damaged without the consent of the Canal Company under their common seal first had and obtained :
- (6) If in execution of any of the works by this Act authorised or by any act or omission of the Corporation or any of their agents or servants it shall happen that any of the canals towing paths or works of the Canal Company shall be so obstructed or injured that boats or vessels (with their usual and accustomed loads) or persons using the same shall be obstructed or delayed then and in such case the Corporation shall pay to the Canal Company all costs and expenses to which the Canal Company shall be put in consequence of such obstruction injury or delay as well as full compensation for the loss and damage sustained by them by reason thereof And also if for the purpose of constructing any of the works by this Act authorised it shall be necessary to take the water out of the said

canal the Corporation will pay to the Canal Company the costs incurred by them in taking out and pumping back the water and compensation for interference with the traffic during the time that the traffic on the said canal is interfered with. The water shall be taken out of the said canal at such time as shall be fixed by the engineer of the Canal Company or by an arbitrator appointed as hereinafter provided : A.D. 1904.

(7) Any additional expenses in the maintaining of the said bridge or the approaches thereto occasioned by the execution of any of the works by this Act authorised shall be borne by the Corporation and shall be deemed to be part of the expenses of maintenance of Tramway No. 2 :

(8) Any difference which may arise between the Corporation and the canal company as to any matter or thing referred to in this section shall be settled by an engineer or other fit person to be agreed between the parties in difference or failing agreement to be nominated as arbitrator by the Board of Trade on the application of either party.

8. In the construction of the works authorised by this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of lateral deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding two feet either upwards or downwards. Limits of deviation.

9. Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Corporation may in connection with the works authorised by this Act and for the purposes thereof make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to such works and may make diversions widenings or alterations of the lines or levels of any existing streets for the purpose of connecting the same with such works or of crossing under or over the same or otherwise and may alter divert or stop up all or any part of any drain sewer channel or gas or water main or pipe wire or apparatus within the said limits the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of any gas or water in any main or pipe or of electricity in any wire or apparatus and Subsidiary works.

A.D. 1904. making compensation for any damage done by them in the execution of the powers of this section.

Agreements with county and district councils and canal company.

10. The Corporation the county council for the administrative county of Stafford the Wednesfield Urban District Council and the canal company or any of them may enter into and carry into effect agreements for or in relation to the reconstruction widening improvement maintenance and repair of Rookery Bridge and for the payment of the expenses thereof by the parties to the agreements or any of them in such proportions as may be determined by the agreements and all expenses incurred by such county council or district council in pursuance of this section shall be defrayed as part of the expenses incurred in relation to the maintenance repair improvement or enlargement of bridges roads or other highways by such council and for the purposes aforesaid and for the purpose of borrowing money the exercise of the powers of this section shall be deemed to be a purpose of the Local Government Act 1888 or of the Public Health Act 1875 (as the case may be).

Temporary stoppage of streets.

11. The Corporation may during the execution and for the purposes of any work authorised by this Act from time to time stop up any street and prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same for any reasonable time but convenient access to the houses in such street shall be provided by the Corporation.

Period for completion of works.

12. The reconstruction widening and improvement of Rookery Bridge shall be completed within five years from the passing of this Act and so much of Tramway No. 2 as is proposed to be constructed across that bridge or will be situate on the northerly side thereof shall be completed within one year after the reconstruction widening or improvement of such bridge and the remainder of the tramways shall be completed within five years from the passing of this Act and on the expiration of those periods respectively the powers by this Act granted to the Corporation for executing the said works or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

As to posts standards and brackets.

13. Subject to the provisions of this Act and of the Board of Trade regulations the position and design of all posts standards and brackets and their several attachments shall be such as the

local and road authority and the Corporation may agree or as in case of difference between them may be determined by the Board of Trade. A.D. 1904. —

14. The provisions of section 43 of the Tramways Act 1870 shall apply to the tramways authorised by this Act. Provided that in the application of those provisions the period of seven years from the passing of the Act of 1899 shall be substituted for the period of twenty-one years from the passing of this Act and the period of three years shall be substituted for the period of seven years. Purchase of tramways by local authorities.

15. The tramways and works authorised by this Act shall for all purposes form part of the tramway undertaking of the Corporation and the provisions of the Act of 1899 and of the *Wolverhampton Corporation Tramways Order 1902* (which was confirmed by the *Tramways Orders Confirmation (No. 2) Act 1902*) and of the enactments incorporated therewith respectively and any byelaws and regulations made in pursuance thereof respectively so far as such provisions byelaws and regulations are not inconsistent with the provisions of this Act shall extend and apply to the said tramways and works as if they had formed part of the tramways and works authorised by the Act of 1899. Works to form part of tramway undertaking of Corporation.

16. Section 42 (Reconstruction of tramways and construction of electric works) of the Act of 1899 shall be amended by the substitution of the following proviso for the proviso to that section namely :— Amendment of Act of 1899 as to reconstruction of tramways.

Provided that where in the exercise of the powers of this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road (except in cases where prior to the exercise of such powers such less space shall have intervened) the Corporation shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops and warehouses abutting on the place where such less space would intervene and such rail shall not be so laid (except with the consent of the Board of Trade) if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Corporation within three weeks after receiving the notice under this section express their objection thereto.

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Alteration
of tramways.

17. Notwithstanding anything contained in the Act of 1899 or in this Act the Corporation with the consent of the Board of Trade may construct any of their tramways or when constructed may take up and re-construct the same in such position in the road in which it is authorised to be constructed as they may think fit. Provided that if in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road (except in cases where prior to the construction of such works such less space shall have intervened) the Corporation shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops and warehouses abutting on the place where such less space would intervene and such rail shall not be so laid (except with the consent of the Board of Trade) if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Corporation within three weeks after receiving the notice from the Corporation express their objection thereto.

Extension
of time for
construction
of tramways
authorised
in 1899
and 1902.

18.—(1) The period limited by section 32 of the Act of 1899 for the completion of the tramways authorised by that Act is hereby extended until the expiration of four years from the passing of this Act.

(2) Section 18 of the Tramways Act 1870 shall cease to apply to the tramways authorised by the Wolverhampton Corporation Tramways Order 1902 but such tramways shall be completed within four years from the passing of this Act and on the expiration of that period the powers granted by the said Order of 1902 to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Attachment
of brackets
to buildings.

19.—(1) The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of the tramways of the Corporation by mechanical power :

Provided that—

(a) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power having regard to the character of the building and

to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid;

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- (b) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (a);
- (c) The owner may require the Corporation to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

(2) For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner.

(3) No brackets wires or other apparatus shall under the provisions of this section be attached to any bridge or other work of the London and North Western Railway Company or of the Great Western Railway Company without the company's previous consent in writing unless it be determined as herein provided that such consent has been unreasonably withheld and if any question shall arise between the Corporation and either of such companies as to whether any such consent is unreasonably withheld or as to the terms and conditions upon and subject to which any such attachment may be effected the same shall be determined by arbitration the arbitrator unless otherwise agreed being appointed by the Board of Trade.

20. The Corporation may erect provide and fit up shelters or waiting-rooms for persons intending to use any of their tramways near to the routes of the tramways either upon land to be acquired for the purpose or (with the consent of the local and road authority) upon the highways.

Waiting
rooms.

A.D. 1904.

Penalty for
malicious
damage.

21. If any person wilfully does or causes to be done with respect to any apparatus used for or in connection with the working of any of the tramways of the Corporation anything which is calculated to obstruct or interfere with the working of such tramways or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence or of any offence under section 50 of the Tramways Act 1870 with respect to any of the tramways of the Corporation shall be liable to a penalty not exceeding twenty pounds.

Regulations
as to street
traffic.

22.—(1) The Corporation may from time to time make regulations with respect to those streets in the borough to be specified in the regulations in which any of their tramways are constructed or which are specially liable to be obstructed by reason of the amount or nature of the traffic requiring the drivers of slow-moving vehicles to keep their vehicles to a particular portion of the street.

(2) All regulations under this section shall be subject to the approval of the Secretary of State.

(3) Any person who shall contravene any such regulation after warning given by word or signal by a police constable stationed in the street to direct the traffic shall be liable to a penalty not exceeding forty shillings.

Corporation
may run
omnibuses.

23.—(1) The Corporation may provide maintain work and run omnibuses (whether moved by animal or by mechanical power)—

(a) Within the borough in connection with the tramways of the Corporation when the running of carriages thereon is impracticable or during the construction re-construction alteration or repair thereof or in extension of any of such tramways and also for testing the amount of traffic along any route or between any particular points ;

(b) Beyond the borough along the route of any tramways which the Corporation have been or shall be authorised to construct ;

(c) Along the Compton Road within the borough and the urban district of Tettenhall to the Swan Inn Compton ;

- (d) Along the Penn Road within the borough and the parish of Upper Penn to the Rose and Crown Inn Upper Penn : A.D. 1901.

And the Corporation may demand take and recover tolls and fares for the use of such omnibuses.

(2) The Corporation may purchase by agreement take on lease and hold lands and buildings and may provide such plant appliances and conveniences as may be necessary or expedient for the establishment running and equipment of such omnibuses.

(3) The Corporation may make byelaws for regulating the travelling and for the prevention of nuisances in or upon any omnibus belonging to them Provided that any such byelaw shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws.

(4) All expenses and receipts incurred in or arising from the exercise of the powers of this section shall be deemed to be part of the expenses and receipts of the tramway undertaking of the Corporation.

(5) The Corporation shall not use electrical energy as motive power on such omnibuses unless the electrical energy is entirely contained in and carried along with such omnibuses :

Provided that any omnibuses moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

(6) The Corporation shall not exercise any of the powers of this section within the urban districts of Bilston Coseley Darlaston Sedgley or Willenhall nor without the consent in writing of the Tettenhall Urban District Council or the Seisdon Rural District Council respectively within the urban district of Tettenhall or the rural district of Seisdon.

(7) The Corporation shall not under the powers of this section run omnibuses before the expiration of two years from the passing of this Act along any route along which there was a regular line of omnibuses on the first day of January nineteen hundred and four except along routes along which tramways are constructed or along which powers for the construction of tramways have been conferred upon the Corporation by this or any other Act of Parliament or Order confirmed by Parliament.

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PART III.

LANDS.

Power to
take lands.

24. Subject to the provisions of this Act the Corporation may enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of this Act.

Correction
of errors &c.
in deposited
plans and
book of
reference.

25. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Stafford for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Stafford and a duplicate thereof shall also be deposited with the clerk to the urban district council for the district in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerk of the peace and clerk to the urban district council respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

Period for
compulsory
purchase
of lands.

26. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the passing of this Act.

Persons
under dis-
ability may
grant ease-
ments &c.

27. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same

are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. A.D. 1904.

28. The Corporation in addition to any other lands which they are by this Act authorised to acquire may by agreement purchase take on lease acquire and hold for the purposes of this Act any lands not exceeding in the whole five acres Provided that the Corporation shall not sink or construct or cause or permit to be sunk or constructed a well or borehole on any lands acquired under or in pursuance of this Act or create or permit the creation or continuance of any nuisance on any lands so acquired. Power to purchase additional lands by agreement.

29.—(1) Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this or any other local Act or under the Tramways Act 1870 and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange. Power to retain or to dispose of lands.

(2) Any capital moneys received by the Corporation on resale exchange or leasing of lands in pursuance of this section shall be applied in or towards the extinguishment of any loan raised by the Corporation under the powers or for the purposes of the Act under which the lands were acquired or (in the case of capital moneys arising from the resale exchange or leasing of lands acquired under the Tramways Act 1870) in or towards the extinguishment of any loan raised by the Corporation for the purposes of their tramways undertaking or (in any case) for such other purposes as the Corporation with the consent of the Local Government Board shall determine.

(3) Any application of capital moneys in pursuance of this section in or towards the extinguishment of any loan shall be

A.D. 1904. in addition to and not in substitution for any other mode of extinguishment provided by the Act relating to such loan except to such extent and upon such terms as may be approved by the Local Government Board.

General power to appropriate lands with consent of Local Government Board.

30. In addition and without prejudice to any other powers for the time being vested in the Corporation they may with the consent of the Local Government Board and subject to such conditions as that Board may impose retain and use for any purpose for which the Corporation are for the time being empowered to hold lands any lands for the time being belonging to them whether acquired in pursuance of a local or general Act of Parliament or otherwise and not required for the purpose for which they were acquired Provided that the Corporation shall not sink or construct or cause or permit to be sunk or constructed for the purpose of or in connection with their water undertaking a well or borehole on any lands which they shall appropriate or otherwise deal with under the powers of this section.

Disposal of lands of Nechell's charity.

31. The lands situate at Coven Heath in the parish of Bushbury referred to in the preamble to this Act shall be deemed to be corporate lands belonging to the Corporation within the meaning of the Municipal Corporations Act 1882 and the Corporation may subject to and in accordance with the provisions of that Act dispose of such lands freed and discharged from the trusts affecting the same referred to in the preamble to this Act.

PART IV.

ELECTRICITY.

Supply of electrical energy outside borough.

32. If the local authority for any district adjacent to the area which the Corporation are for the time being authorised to supply with electrical energy shall be authorised by Act of Parliament or by Provisional Order confirmed by Parliament to supply energy or if any company shall be so authorised to supply energy within any such district the Corporation and such local authority or company as the case may be may enter into and carry into effect agreements for the supply of electrical energy in bulk by the Corporation to such authority or company but such agreements shall in all respects be subject to the approval of the Board of Trade.

33.—(1) Any local authority company or person authorised to transfer their powers duties liabilities and works under any Act of Parliament or Provisional Order relating to the supply of electrical energy in any district adjoining or near to the borough may with the approval of the Board of Trade transfer such powers duties liabilities and works or any of them to the Corporation and the Corporation may accept such transfer and may raise money for the purpose thereof and of supplying energy in such district under the provisions of the Electric Lighting Acts 1882 and 1888 in like manner as if such district were part of the area of supply under the Wolverhampton Electric Lighting Order 1890.

A.D. 1904.
Power to accept transfer of electric lighting undertakings.

(2) Any capital moneys received by any local authority in respect of any transfer under this section shall be applied by such authority in manner provided by subsection (2) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899.

34. The Corporation may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear whether any such payments be due to the Corporation in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

Corporation may refuse to supply electrical energy in certain cases.

35. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 or in the Wolverhampton Electric Lighting Order 1890 a person shall not be entitled to demand from the Corporation a supply or the continuance of a supply of electrical energy for premises having a separate supply unless he shall have previously agreed to pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by them to meet the possible maximum demand for those premises and the sum to be so paid shall be determined in default of agreement by arbitration under the Electric Lighting Act 1882.

Supply of energy to premises having a separate supply.

PART V.

MARKETS.

36. The market keeper any officer of the market the inspector of nuisances or any constable may remove and exclude from the cattle market of the Corporation or from any place licensed under the Act of 1869 for the sale of cattle all animals

Market keeper may remove animals suspected of tuberculosis.

A.D. 1904. which after inspection by a duly registered veterinary surgeon shall be suspected by him to be affected with tubercular disease.

Market
keeper may
exclude
diseased
animals.

37. The market keeper any officer of the market the inspector of nuisances or any constable may remove and exclude from the cattle market of the Corporation or from any place licensed under the Act of 1869 for the sale of cattle any old emaciated or diseased animal which in the opinion of a duly registered veterinary surgeon or of the medical officer is unfit for human food.

Power to
sell ice.

38. The Corporation may sell any ice produced by means of the ice-making apparatus which they have provided in pursuance of Article VI. of the Wolverhampton Order 1900 or by means of any apparatus which may be substituted therefor the capacity of which shall not exceed the capacity of the existing apparatus.

Saving
Diseases of
Animals
Act 1894.

39. Nothing in this part of this Act shall interfere with the operation or effect of the Diseases of Animals Act 1894 or of any order of the Board of Agriculture and Fisheries made thereunder.

PART VI.

STREETS AND BUILDINGS.

Approval of
plan to be
void after
certain
interval.

40.—(1) The approval by the Corporation of any plan or section of any street or building and the notice of intention to lay out or construct such street or building shall be null and void if the execution of the work specified in such plan or section be not commenced within the following periods (that is to say) :—

As to plans and sections approved after the passing of this Act within two years from the date of such approval ;

As to plans and sections approved before the passing of this Act within two years from the date of the passing of this Act ;

and at the expiration of those respective periods fresh notice and deposit and approval shall unless the Corporation otherwise determine be requisite.

(2) The Corporation shall give notice of the provisions of this section to every person intending to lay out a new street or erect a new building the plans for which shall have been approved before the passing of this Act but the laying out of which street or erection of which building shall not have been commenced

and shall attach a similar notice to every approval of plans given subsequent to the passing of this Act. A.D. 1904.

41.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Corporation for permission to do so and such application shall be accompanied by a plan and section of the proposed building drawn to a scale of not less than one inch to every eight feet and a plan drawn to a convenient scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

As to temporary and movable buildings.

(2) The Corporation shall within one month after the delivery of the plan section and specification signify in writing their approval or disapproval of the proposed building to the person proposing to erect or set up the same.

(3) The Corporation may attach to their approval any condition which they may deem proper with regard to the sanitary arrangements of such building the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand.

(4) If any such proposed building is commenced erected or set up without such application accompanied by such plan section and specification or after the disapproval of the Corporation or before the expiration of the one month without such approval or is in any respect not in conformity with the approved plan section and specification and with any condition attached by the Corporation to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Corporation or any prolongation thereof allowed by them the owner of such building shall for every such offence be liable to a penalty not exceeding forty shillings and to a daily penalty of the like amount and the Corporation may cause such building to be taken down or removed and any expense incurred by them in or about the taking down or removal of the building may be recovered from the owner thereof or from the person commencing erecting or setting up the same at the discretion of the Corporation.

(5) The following buildings and works shall be exempt from the operation of this section :—

(a) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the borough with respect to new buildings ;

A.D. 1904.

- (b) Any tent not remaining for more than seven days ;
- (c) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be taken down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Corporation may cause the same to be taken down or removed and any expense incurred by them in or about the taking down or removal of the structure or erection may be recovered from the owner thereof or from the person erecting or setting up the same at the discretion of the Corporation ;
- (d) Any wooden or other structure or erection erected or set up for the purpose of protecting or preventing the acquisition of any right of light ; and
- (e) Buildings (other than a dwelling-house) erected or set up on the premises of any railway company and used for the purposes of their railway.

(6) When a temporary or other building referred to in this section is taken down or removed by the Corporation under the powers of this section the Corporation may sell the materials thereof or any part of them and shall apply the proceeds of the sale in and towards payment of the costs and expenses incurred by them in relation to such building and shall pay the balance (if any) to the owner of such building.

Provisions
as to separate system
of sewerage.

42.—(1) The Corporation may by resolution declare that any sewer for the time being belonging to them shall thenceforth be appropriated and used for sewage (in this Act called a "sewage sewer.") and they may also declare that any other sewer for the time being belonging to them shall thenceforth be appropriated and used for surface water (in this Act called a "surface water sewer").

(2) Where under the provisions of any Acts for the time being in force in the borough the Corporation have power to require any street to be sewered they may require the provision of separate sewage sewers and surface water sewers and the provisions of those Acts shall apply to such sewers accordingly.

(3)—(a) Where in any street separate sewage sewers and surface water sewers shall have been provided (whether before

or after the passing of this Act) no sewage shall be allowed to pass from any premises into the surface water sewers and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewers except with the consent in writing of the Corporation : A.D. 1904.

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings :

(c) Provided that in the case of any premises existing at the time of the provision of separate sewers the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient to effectually drain such premises the provisions of this subsection shall not apply to such premises until the Corporation have at their own expense made all necessary alterations to the drains and pipes of such premises in order to keep separate the sewage and surface water drainage thereof and the Corporation may if they think fit make all such alterations.

43. The powers conferred by section 41 of the Public Health Act 1875 upon the Corporation to empower the surveyor and inspector of nuisances to enter premises for the purposes therein mentioned shall extend to authorise the Corporation if on the report of either of such officers it shall appear that they have reason to suspect that any drain water-closet earth-closet privy ashpit or cesspool is in a condition in which it is a nuisance or injurious to health or likely to become so to empower the surveyor or inspector of nuisances after twenty-four hours' notice to the occupier of such premises or in case of emergency without notice to enter such premises and to act in accordance with the provisions of the said section as if such written application had been made as therein mentioned. Extension of section 41 of Public Health Act 1875.

44.—(1) If it appear to the Corporation that two or more houses plans for which have been approved after the passing of this Act may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Corporation may when the drains for such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the costs and expenses incurred by the Corporation may order houses to be drained by a combined drain. Corporation may order houses to be drained by a combined drain.

A.D. 1904. Corporation in relation to the construction of such combined drain and the repair and maintenance thereof shall be apportioned between the owners or occupiers of such houses in such manner as the Corporation shall determine and if paid by the Corporation may be recovered by them from such owners or occupiers.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

Amendment of section 19 of Public Health Acts Amendment Act 1890.

45. The powers given by section 19 of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

Regulation dustbins.

46. The Corporation may by notice in writing require the owner or occupier of any dwelling-house to provide galvanised iron or enamelled iron dustbins in lieu of ashpits and such dustbins shall be of such size and construction as may be approved by the Corporation and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation shall for every such offence be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings. Provided that this section shall not apply to any dustbins or ashpits in use at the passing of this Act so long as the same are of suitable size and in proper order and condition.

Byelaws as to lavatories.

47. The Corporation may make reasonable charges for the use of any lavatories belonging to them and may make byelaws for the management of such lavatories and as to the conduct of persons resorting thereto.

PART VII.

INFECTIOUS DISEASES.

Infected person not to carry on business &c.

48.—(1) No person suffering from an infectious disease shall milk any animal the milk of which is intended for consumption within the borough or pick fruit intended for consumption within the borough or engage in any trade or business connected with food intended for consumption within the borough or carry on any trade or business in such a manner as to be likely to spread such infectious disease within the borough.

(2) Every person who shall offend against this section shall for every such offence be liable to a penalty not exceeding forty shillings. A.D. 1904.

49.—(1) If the medical officer shall have reasonable cause to believe that any person in the borough is suffering from infectious disease attributable to milk supplied within the borough he may by notice in writing require every person supplying milk to the person so suffering or to the house of which he is an inmate to furnish him with a list of all the farms dairies or places from which such person derives his supply of milk or from which he has derived his supply during the last six weeks and a list of the persons to whom he has within such six weeks supplied milk within the borough and the Corporation shall pay to him for every such list the sum of sixpence and at the rate of sixpence for every twenty-five names contained therein. Dairymen to furnish lists of sources of their supply of milk and customers in certain cases.

(2) Every person who shall fail to comply with this section shall for every such offence be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

50.—(1) Every dairyman supplying milk within the borough from premises whether within or beyond the borough shall notify to the medical officer all cases of infectious disease among persons engaged in or in connection with his dairy as soon as he becomes aware or has reason to suspect that such infectious disease exists. Dairymen to notify infectious diseases existing among their servants.

(2) Any dairyman who shall fail to comply with this section shall for every such offence be liable to a penalty not exceeding forty shillings.

51. Any person taking or sending to any public washhouse or to any person for the purpose of being washed or mangled any bedding clothing or other things which to his knowledge have been exposed to infection from infectious disease shall previously to so taking or sending the same cause such bedding clothing or other things to be disinfected by the Corporation or to the satisfaction of the medical officer and in default shall be liable to a penalty not exceeding forty shillings and the Corporation shall make provision for disinfecting and shall on application disinfect at their expense such bedding clothing and other things. Disinfection of clothes.

52.—(1) Where on the certificate of the medical officer it appears to the Corporation that any articles in any house or part thereof are in such a filthy and dangerous or unwholesome Filthy and dangerous articles to be purified.

A.D. 1904. condition that health is affected or endangered thereby or that the cleansing or purifying or destroying of any such articles is requisite to prevent risk of or to check infectious disease the Corporation may cause any such articles in any such house or part thereof to be at their own expense cleansed or purified or they may destroy the same.

(2) If any owner suffer any unnecessary damage the Corporation shall compensate him for the same and the Corporation shall also reasonably compensate the owner for any articles destroyed.

Child suffering from infectious disease not to attend school.

53.—(1) No person being the parent or having the care or charge of a child who is or has been suffering from infectious disease shall after a notice from the medical officer that the child is not to be sent to school permit such child to attend school without having procured from the medical officer a certificate (which shall be granted free of charge upon application) that in his opinion such child may attend without undue risk of communicating such disease to others.

(2) Any person who shall offend against this section shall for every such offence be liable to a penalty not exceeding forty shillings.

Power to medical officer to examine school children:

54.—(1) The medical officer may enter any public elementary school within the borough at all reasonable times and examine the scholars attending the same and may exclude from attendance thereat for such period as he shall consider requisite any scholar who in his opinion is suffering from infectious disease or is likely to spread infection.

(2) The medical officer shall upon the exclusion of any scholar in manner aforesaid give notice thereof in writing to the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends and shall send a copy of such notice to the parent or guardian of the scholar.

(3) Any person who shall obstruct the medical officer in carrying into effect the provisions of this section or who shall permit any scholar to attend school after he shall have been excluded as aforesaid and before the expiration of the period of exclusion shall for every such offence be liable to a penalty not exceeding forty shillings.

55.—(1) Whenever any scholar who attends any school within the borough shall be known to be suffering from any infectious disease the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends shall forthwith on becoming aware of the fact send notice thereof to the medical officer and shall furnish to the Corporation at their request a list of the scholars attending thereat together with their addresses.

A.D. 1904.
Principal of school to furnish lists of scholars in certain cases.

(2) The Corporation shall pay to the person furnishing any such list as aforesaid for such list the sum of sixpence and at the rate of sixpence for every twenty-five scholars named therein.

(3) Any person who shall fail to comply with subsection (1) of this section shall for every such offence be liable to a penalty not exceeding forty shillings.

56.—(1) No person shall take out of any public or lending library any book for use in any house in which there is a person suffering from infectious disease and no person shall return to any public or lending library any book which has been to his knowledge exposed to infection from any infectious disease but shall at once give notice that it has been exposed to infection to the inspector of nuisances who shall cause the same to be disinfected and then returned to the librarian or proprietor.

Protection against infection of books from lending library.

(2) Any person who shall offend against this section shall for every such offence be liable to a penalty not exceeding forty shillings.

57. The Corporation may make byelaws for regulating the admission of patients to and the discharge of patients from any hospital for infectious disease temporarily or otherwise provided by them and the conduct of patients therein and for preventing persons from entering such hospitals or the grounds thereof except with the consent of and subject to such conditions as may be imposed by the Corporation.

Byelaws regulating hospitals.

58. Where a person not being a pauper is received as a patient into any hospital for infectious disease the Corporation may themselves pay the whole or any part of the expenses arising out of the reception and maintenance of such person.

Corporation may pay expenses of person in hospital.

59. If any person shall at the request of the Corporation or of the medical officer stop his employment for the purpose of

Compensation to persons ceasing employment.

A.D. 1904. — preventing the spread of infectious disease the Corporation may make compensation to him for any loss he may sustain by reason of such stoppage.

Removal of
persons from
infected
premises.

60.—(1) If the Corporation or the medical officer deem it necessary to remove from any house or part thereof all or any of the residents not being themselves sick on account of the existence or recent existence therein of infectious disease or for the purpose of disinfecting such house or part thereof the Corporation may make application to a justice of the peace and the justice of the peace if satisfied of the necessity of such removal may grant a warrant authorising the Corporation or the medical officer to remove such residents and imposing such conditions as to time and otherwise as to him may seem fit Provided always that no such warrant shall be necessary when the removal is carried out with the consent of any such resident or his parent or guardian.

(2) The Corporation shall and they are hereby empowered to provide temporary shelter or house accommodation and if necessary maintenance with any necessary attendance free of charge for such persons while prevented from returning to such house or part thereof.

(3) For the purpose of this section the word "house" includes any tent van shed or similar structure used for human habitation or any boat lying in any canal or other water within the borough and used for the like purpose.

Prohibiting
conveyance
of infected
persons in
public
vehicle.

61. The owner or driver of a public vehicle used for the carrying of passengers at separate fares shall not knowingly convey or any other person shall not knowingly place in any such public vehicle a person suffering from any infectious disease or a person suffering from any such disease shall not enter any such vehicle and every person who shall offend against this section shall for every such offence be liable to a penalty not exceeding forty shillings.

Driver &c.
of infected
person to
give notice.

62.—(1) If any person suffering from any infectious disease is conveyed in any public vehicle the owner or driver thereof as soon as it comes to his knowledge shall give notice to the medical officer and shall cause such vehicle to be disinfectd and if he fails so to do he shall be liable to a penalty not exceeding five pounds and the owner or driver of such vehicle shall be entitled to recover in a summary manner from the person so conveyed

or from the person causing that person to be so conveyed a sum sufficient to cover any loss and expense incurred by him in connection with such disinfection. A.D. 1904.

(2) It shall be the duty of the Corporation when so requested by the owner or driver of such public vehicle to provide for the disinfection of the same free of charge except in cases where the owner or driver conveyed a person knowing that he was suffering from infectious disease.

63.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity who within the borough—

For regu-
lating manu-
facture and
sale of ice
cream &c.

(a) causes or permits ice cream or any similar commodity to be manufactured sold or stored in any cellar room or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

(b) in the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or

(c) omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable for every such offence to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Corporation shall compensate the owner of the ice cream commodity or materials so destroyed.

(3) Every dealer in ice cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand must have his name and address legibly painted or inscribed on such cart barrow or stand and any person who shall fail to comply with this subsection shall for every such offence be liable to a penalty not exceeding forty shillings.

64.—(1) Public notice of the provisions of this part of this Act shall be given forthwith after the passing of this Act by

Public
notice to be

A.D. 1904. advertisement in two newspapers published or circulating in the borough and by a notice affixed outside the town hall and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained.

given of provisions of this part of Act.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

PART VIII.

MILK SUPPLY (TUBERCULOSIS).

Penalty for selling milk of diseased cows. **65.** Every person who knowingly sells or suffers to be sold or used for human consumption within the borough the milk of any cow which is suffering from tuberculosis of the udder shall be liable to a penalty not exceeding ten pounds.

Penalty on failing to isolate diseased cows. **66.** Any person the milk of the cows in whose dairy is sold or suffered to be sold or used for human consumption within the borough who after becoming aware that any cow in his dairy is suffering from tuberculosis of the udder keeps or permits to be kept such cow in any field shed or other premises along with other cows in milk shall be liable to a penalty not exceeding five pounds.

Obligation to notify cases of tuberculosis. **67.**—(1) Every dairyman who supplies milk within the borough and has in his dairy any cow affected with or suspected of or exhibiting signs of tuberculosis of the udder shall forthwith give written notice of the fact to the medical officer stating his name and address and the situation of the dairy or premises where the cow is.

(2) Any dairyman failing to give such notice as required by this section shall be liable to a penalty not exceeding forty shillings.

Power to take samples of milk. **68.**—(1) It shall be lawful for the medical officer or any person provided with and if required exhibiting the authority in writing of such medical officer to take within the borough for examination samples of milk produced or sold or intended for sale within the borough.

(2) The like powers in all respects may be exercised outside the borough by the medical officer or such authorised person if he shall first have obtained from a justice having jurisdiction

in the place where the sample is to be taken an order authorising the taking of samples of the milk which order any such justice is hereby empowered to make. A.D. 1904.

69.—(1) If milk from a dairy situate within the borough is being sold or suffered to be sold or used within the borough the medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may if accompanied by a properly qualified veterinary surgeon at all reasonable hours enter the dairy and inspect the cows kept therein and if the medical officer or such person has reason to suspect that any cow in the dairy is suffering from tuberculosis of the udder he may require the cow to be milked in his presence and may take samples of the milk and the milk from any particular teat shall if he so requires be kept separate and separate samples thereof be furnished. Power to inspect cows and to take samples of milk.

(2) If the medical officer is of opinion that tuberculosis is caused or is likely to be caused to persons residing in the borough from consumption of the milk supplied from a dairy situate within the borough or from any cow kept therein he shall report thereon to the Corporation and his report shall be accompanied by any report furnished to him by the veterinary surgeon and the Corporation may thereupon serve on the dairyman notice to appear before them within such time not less than twenty-four hours as may be specified in the notice to show cause why an order should not be made requiring him not to supply any milk from such dairy within the borough until the order has been withdrawn by the Corporation.

(3) If the medical officer has reason to believe that milk from any dairy situate outside the borough from which milk is being sold or suffered to be sold or used within the borough is likely to cause tuberculosis in persons residing within the borough the powers conferred by this section may in all respects be exercised in the case of such dairy. Provided that the medical officer or other authorised person shall first have obtained from a justice having jurisdiction in the place where the dairy is situate an order authorising such entry and inspection which order any such justice is hereby empowered to make.

(4) Every dairyman and the persons in his employment shall render such reasonable assistance to the medical officer or such authorised person or veterinary surgeon as aforesaid as may be required by such medical officer person or veterinary

A.D. 1904. — surgeon for all or any of the purposes of this section and any person refusing such assistance or obstructing such medical officer person or veterinary surgeon in carrying out the purposes of this section shall be liable to a penalty not exceeding five pounds.

(5) If in their opinion the dairyman fails to show cause why such an order should not be made as aforesaid the Corporation may make the said order and shall forthwith serve notice of the facts on the county council of any administrative county in which the dairy is situate and on the Local Government Board and if the dairy is situate outside the borough on the council of the borough or district in which it is situate.

(6) The said order shall be forthwith withdrawn on the Corporation or their medical officer being satisfied that the milk supply has been changed or that it is not likely to cause tuberculosis to persons residing in the borough.

(7) If any person after any such order has been made supplies any milk within the borough in contravention of the order or sells it for consumption therein he shall be liable to a penalty not exceeding five pounds and if the offence continues to a further penalty not exceeding forty shillings for every day during which the offence continues.

(8) A dairyman shall not be liable to an action for breach of contract if the breach be due to an order under this section.

Appeal.

70.—(1) The dairyman may appeal against an order of the Corporation made under the last preceding section or the refusal of the Corporation to withdraw any such order either to a petty sessional court having jurisdiction within the borough or at his option if the dairy is situate outside the borough to the Board of Agriculture and Fisheries who shall appoint an officer to hear such appeal. Such officer shall fix a time and place of hearing within the borough and give notice thereof to the dairyman and the town clerk not less than forty-eight hours before the hearing. Such officer shall for the purposes of the appeal have all the powers of a petty sessional court.

(2) The Board of Agriculture and Fisheries may at any stage require payment to them by the dairyman of such sum as they deem right to secure the payment of any costs incurred by the Board in the matter of the appeal.

(3) The court or the Board of Agriculture and Fisheries as the case may be may confirm vary or withdraw the order which

is the subject of the appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Board of Agriculture and Fisheries as aforesaid) are to be paid but pending the decision of the appeal the order shall remain in force unless previously withdrawn by the Corporation.

A.D. 1904.

71.—(1) If an order is made without due cause or if the Corporation unreasonably refuse to withdraw the order the dairyman shall if not himself in default be entitled to recover from the Corporation full compensation for any damage which he has sustained by reason of the making of the order or of the refusal of the Corporation to withdraw the order.

Compensation to dairyman.

(2) The court or the Board of Agriculture and Fisheries may determine and state whether an order the subject of appeal has been made without due cause and whether the Corporation have unreasonably refused to withdraw the order and whether the dairyman has been in default.

(3) Any dispute as to the fact whether the order has been made or maintained without due cause or as to the fact of default where any such fact has not been determined by the court or Board of Agriculture and Fisheries or as to the fact of damage or as to the amount of compensation shall be determined in the manner provided by section 308 of the Public Health Act 1875 and that section shall accordingly apply and have effect as if the same were herein re-enacted and in terms made applicable to any such dispute as aforesaid.

72. Offences under this part of this Act may be prosecuted and penalties may be recovered by the Corporation before a petty sessional court having jurisdiction in the place where the dairy is situate or the offence is committed and not otherwise.

Procedure.

73. All expenses incurred by the Corporation in carrying into execution the provisions of this part of this Act shall be chargeable upon the improvement fund and improvement rate and the Corporation may also charge upon the same fund and rate any expenses incurred by them in the application by a veterinary surgeon of the tuberculin or other reasonable test for the purpose of discovering tuberculosis to any cow whose milk is or was recently being supplied within the borough. Provided that no such test shall be applied except with the previous consent of the owner of such cow.

Expenses of this part of Act.

A.D. 1904.

Execution
of this part
of Act by
committee.

74. This part of this Act may be carried into execution by a committee of the council formed in accordance with and subject to the provisions of the Fourth Schedule to the Diseases of Animals Act 1894 except that the committee shall consist wholly of members of the council.

Notice of
provisions
of this part
of Act.

75. The Corporation shall cause to be given public notice of the effect of the provisions of this part of this Act by advertisement in local newspapers and by handbills and otherwise in such manner as they think sufficient and this part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Corporation may fix.

PART IX.

COMMON LODGING-HOUSES.

Regulations
as to com-
mon lodging-
house
keepers.

76.—(1) The keeper of every common lodging-house shall reside constantly and shall remain between the hours of nine o'clock in the afternoon and six o'clock in the forenoon in such house and shall manage control and exercise proper supervision over the same and the inmates thereof except at such times as some other person who is appointed by him for that purpose and whose name is registered at the office of the Corporation shall with the approval of the Corporation in writing under the hand of their officer appointed for that purpose (which approval and registration shall be revocable by the Corporation) reside and remain in such house and manage control and exercise proper supervision over the same and the inmates thereof as the case may be.

(2) Any keeper of a common lodging-house who shall offend against this section shall for every such offence be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Sanitary con-
veniences in
common
lodging-
houses.

77.—(1) Every common lodging-house shall be provided with sufficient and suitable sanitary conveniences having regard to the number of lodgers who may be received therein and also with proper separate sanitary conveniences for persons of each sex.

(2) Where it appears to the Corporation on the report of their inspector of nuisances that the provisions of this section are not complied with in the case of any common lodging-house the Corporation may if they think fit by notice require the keeper thereof to make such alterations and additions therein as may

be required to provide such sufficient suitable and proper sanitary conveniences as aforesaid. A.D. 1904.

(3) Any person who shall neglect or refuse to comply with any such notice shall be liable for each default to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

78.—(1) Notwithstanding anything in the Public Health Act 1875 the registration of a common lodging-house or of the keeper of a common lodging-house shall operate for one year only and application for the renewal of such registration shall be made to the Corporation on or previous to the thirty-first day of December in every year. Registration of common lodging-houses and keepers.

(2)—(a) The Corporation may notwithstanding the provisions of section 78 of the Public Health Act 1875 refuse to register or to re-register any person as a common lodging-house keeper unless they are satisfied of his character and fitness for the position :

(b) Any person aggrieved by such refusal may appeal to a court of summary jurisdiction within fourteen days after such refusal provided he give twenty-four hours' notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as they may think fit and to award costs.

(3) Every person who without being registered in accordance with the Public Health Act 1875 and this Act shall keep a common lodging-house within the borough and every person who after the thirty-first day of December nineteen hundred and four shall keep a common lodging-house without the registration of such person and of such house being renewed for the current year shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

79. Notice of the provisions of this part of this Act shall be served upon the keeper of every common lodging-house within the borough either personally or by leaving the same at the common lodging-house. Notice to common lodging-house keepers.

PART X.

ABOLITION OF OFFICE OF VESTRY CLERK AND COLLECTION OF RATES.

80.—(1) Upon the date on which the existing vestry clerk for the township shall cease to hold office the powers and duties of the vestry clerk for the township and the powers of the vestry Abolition of office of vestry clerk.

A.D. 1904. for the township in regard to the appointment and removal of a vestry clerk shall cease and the provisions of the Vestries Act 1850 shall cease to apply to or to be put in force in the township and the orders of the Poor Law Board applying those provisions to the township shall be by virtue of this Act revoked.

(2) As from the said date the powers and duties incident or attaching to the office of vestry clerk for the township shall be transferred to and exerciseable and performed by the persons who would have been entitled or liable to exercise or perform the same respectively if no vestry clerk were appointed.

(3) Any property (real or personal) in the township which immediately before the said date is vested in or held by the churchwardens and overseers of the township (or any of them) for the purposes of the Vestries Act 1850 or in or by any other persons in trust for the same purposes or is vested in or held by the vestry clerk in connection with or for the purposes of his office shall as from that date be by virtue of this Act vested in the overseers for the township.

(4) In every year after the said date the churchwardens of the township in lieu of presenting to the vestry the copy of the accounts of parochial charities not being ecclesiastical delivered or transmitted to them in pursuance of section 44 of the Charitable Trusts Amendment Act 1855 shall deliver or transmit the same to the town clerk and the town clerk shall present the same to the council and insert a copy thereof in the minutes of the council and the provisions of the said section 44 shall apply with the substitution of the council for the vestry.

Transfer to Corporation of powers of vestries.

81. As from such date as the Corporation may by resolution determine the powers of the vestry of the township under sections 3 and 4 of the Poor Rate Assessment and Collection Act 1869 shall be transferred to and may be exercised by the Corporation.

Power to levy improvement rate by instalments.

82. The Corporation may levy the improvement rate either in one sum or by any number of instalments of such amounts and to be paid at such times as they shall from time to time fix and determine at the time of making the rate but if the rate is made payable by instalments the demand note shall in addition to other requisite particulars state the time appointed for payment of each instalment and the Corporation shall also make fresh applications to the ratepayers from time to time as and when any such instalment shall become due for the amount of such instalment and all the powers rights and remedies of the

Corporation and their officers for levying and recovering the improvement rate shall extend and apply to each instalment as if the same were a separate rate. A.D. 1904.

PART XI.

FINANCE.

83.—(1) The Corporation may independently of any other borrowing power borrow at interest money for the following purposes (that is to say):— Power to borrow.

- (a) For the construction of the tramways authorised by this Act together with all necessary conductors and other apparatus works and conveniences for the purposes of the said tramways the sum of ten thousand one hundred and ninety-six pounds ;
- (b) For the reconstruction widening and improvement of the bridge carrying the Wolverhampton Road over the Wyrley and Essington Canal authorised by this Act and for the purchase of lands therefor the sum of two thousand pounds ;
- (c) For paying the costs charges and expenses of this Act as hereinafter provided the sum requisite for that purpose ;

and with the consent of the Board of Trade such further money as may be necessary for any of the foregoing purposes or for any of the purposes of the tramway undertaking of the Corporation and with the consent of the Local Government Board such further money as may be necessary for any of the other purposes of this Act.

(2) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge—

As regards money borrowed for the purposes (a) (b) and (c) and any money borrowed for the purposes of the tramway undertaking of the Corporation the revenue of that undertaking and the borough fund and borough rate or either of those securities ;

As regards money borrowed for any other purposes the borough fund and borough rate and the improvement fund and improvement rate or either of them as the Corporation having regard to the purposes for which the money is borrowed may deem equitable :

A.D. 1904. — Provided that the provisions of this subsection shall not limit the powers conferred upon the Corporation by section 94 (Power to include lands &c. in mortgages) or by section 95 (Power to use one form of mortgage for all purposes) of the Act of 1899.

(3) The Corporation shall pay off all money borrowed by them under this section within the respective periods (in this Act referred to as "the prescribed periods") following (that is to say) :—

As to money borrowed for the purposes (a) within thirty years from the date or dates of borrowing the same ;

As to money borrowed for the purposes (b) within forty years from the date or dates of borrowing the same ;

As to money borrowed for the purpose (c) within five years from the passing of this Act ;

As to money borrowed with the consent of the Board of Trade or of the Local Government Board within such period as the respective Boards may sanction.

(4) As regards so much of any deficiency in the revenue of the tramway undertaking of the Corporation paid or required to be paid by the Corporation out of the borough fund as may arise in respect of the purposes (a) and (b) in this section mentioned the Corporation shall and they are hereby required to repay to the occupiers of any land used as a railway constructed under the powers of any Act of Parliament for public conveyance a sum equivalent to three-fourths of so much of the deficiency as shall arise as aforesaid as the said occupiers respectively shall be liable to pay or shall have paid by reason and in respect of their assessment to the borough rate.

Mode of
payment off
of money
borrowed.

84. The Corporation shall pay off all money borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the date of borrowing the sum in respect of which the payment is made.

Application
of financial
provisions of
Act of 1899.

85. Subject to the provisions of this Act the following sections of the Act of 1899 shall apply for the purposes of this Act as if the same were with any necessary modifications re-enacted herein namely :—

Section 70 (Certain regulations of Public Health Act 1875 as to borrowing not to apply) :

Section 71	(Mode of raising money):	A.D. 1904.
Section 72	(Provisions of Public Health Act as to mortgages to apply):	—
Section 75	(Sinking fund):	
Section 76	(Protection of lender from inquiry):	
Section 77	(Corporation not to regard trusts):	
Section 78	(Appointment of receiver):	
Section 79	(Power to re-borrow):	
Section 80	(Return respecting sinking fund to Local Government Board):	
Section 82	(Application of money borrowed):	
Section 83	(Expenses of execution of Act):	
Section 96	(Inquiries by Local Government Board).	

86. Notwithstanding anything contained in the sanctions of the Local Government Board in pursuance of which the sums of eleven thousand four hundred pounds and twenty-five thousand seven hundred and seventy-two pounds mentioned in the preamble to this Act were authorised to be borrowed the period within which the Corporation shall be under the obligation to pay off those sums shall be fifty years from the eighteenth day of February nineteen hundred and four.

Extension of periods for repayment of loans for Queen Square and Victoria Street improvements.

87. The provisions of the Municipal Corporations Acts relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under those Acts shall extend to the auditing and keeping of accounts and to the accounts kept of sums of money received and paid under this Act.

Audit of accounts.

PART XII.

MISCELLANEOUS.

88.—(1) The Corporation shall not exercise the powers of the sections of this Act whereof the marginal notes respectively are—

Supply of electrical energy outside borough ;

Power to accept transfer of electric lighting undertakings ;

in the urban district of Tettenhall or in the rural district of Seisdon without the consent of the Tettenhall Urban District Council or the Seisdon Rural District Council respectively.

For protection of Tettenhall urban district and Seisdon rural district.

(2) The Corporation shall not exercise the powers of the section of this Act whereof the marginal note is "General power to appropriate lands with consent of Local Government

A.D. 1904. Board" as regards any land situate in the urban district of Tettenhall or in the rural district of Seisdon without the consent of the Tettenhall Urban District Council or the Seisdon Rural District Council respectively.

Reconvey-
ance of lands
acquired for
water under-
taking in
a certain
event.

89. If at any time beyond the limit of time mentioned in sub-clause (q) of clause 9 of the memorandum of agreement dated the fourteenth day of February nineteen hundred and three and set forth in the schedule annexed to the Wolverhampton Order 1903 (which was confirmed by the Local Government Board's Provisional Order Confirmation (No. 18) Act 1903) the Corporation shall cease to maintain or employ their pumping station known as the Cosford Pumping Station as part of their water undertaking then the Corporation shall execute the conveyance mentioned in the said sub-clause upon the terms therein mentioned.

In execut-
ing works
instead of
owner Cor-
poration only
liable for
negligence.

90. Whenever the Corporation or the surveyor under this or any other Act or any byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

General pro-
visions as to
byelaws.

91. Except where otherwise provided the provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws authorised to be made by the Corporation under this Act.

Application
of sections
265 and 306
of Public
Health Act
1875.

92. Section 265 (Protection of local authority and their officers from personal liability) and section 306 (Penalty on obstructing execution of Act) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein.

93.—(1) Where any notice or demand under this Act or under any local Act provisional order or byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication.

A.D. 1904.
—
Authentica-
tion and
service of
notices.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act provisional order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

94. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer of the Corporation under the provisions of this Act or by any conviction or order made by a court of summary jurisdiction or a petty sessional court under the provisions of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction or a petty sessional court the Corporation may in like manner appeal.

As to appeal.

95. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts.

Compensa-
tion how to
be deter-
mined.

96. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties.

A.D. 1904.

Informations
&c. by whom
to be laid.

97. Save as herein expressly provided all informations and complaints under or in respect of the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid by an officer of the Corporation authorised in that behalf or by the town clerk.

Penalties
to be paid
over to
treasurer.

98. All penalties recovered on the prosecution of the Corporation under this Act or under any byelaw thereunder shall be paid to the treasurer of the borough and be by him carried to the credit of the improvement fund.

Judges not
disqualified.

99. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being a member of the Corporation or liable to any rate.

Crown
rights.

100. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Costs of
Act.

101. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the revenue of their tramway undertaking or out of the borough fund or out of moneys borrowed under the provisions of this Act.

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